

BEFORE THE ARBITRATOR

In the Matter of the Arbitration of a Dispute Between

R.W. MILLER & SONS, INC.

and

TEAMSTERS LOCAL UNION NO. 43

Case 1

No. 59296

A-5888

Appearances:

Attorney Daniel D. Barker, for the Company.

Attorney John J. Brennan, for the Union.

ARBITRATION AWARD

Pursuant to the joint request of the parties, I was assigned by the Wisconsin Employment Relations Commission to arbitrate a grievance arising under the terms of the 1999-2003 contract between R.W. Miller & Sons, Inc. and Teamsters Local Union No. 43.

Hearing was held in Lake Geneva, Wisconsin on January 18, 2001. A stenographic transcript of the hearing was prepared and the parties agreed that the transcript was the official record of the proceedings.

The parties filed post-hearing briefs and the record was closed on March 20, 2001 when I received a letter from the Company advising that it would not be filing a reply brief.

ISSUE

The parties were unable to agree on a statement of the issue to be decided but did agree that I could frame the issue after considering their respective positions.

The Union asserts the issue is:

Did the employer violate the collective bargaining agreement by not awarding the cold roller job open on May 5, 2000 to the grievant?

If so, what is the appropriate remedy?

The Company contends the issue is:

Did the Company violate Article 4, Section 1 of the collective bargaining agreement when it refused to transfer John Laskowski from his assignment on the crushing machine to the cold roller?

If the Company violated this Article and Section, what is the appropriate remedy?

Having considered the parties' positions, I frame the issue as:

Did the Company violate the contract by denying the cold roller job to the grievant and, if so, what remedy is appropriate?

PERTINENT CONTRACT LANGUAGE

ARTICLE 4. SENIORITY

Section 1. Seniority, with ability and qualifications, shall govern in advancement to higher rated jobs. For other than seasonal work, employees will be called back to work by seniority in their classifications.

...

ARTICLE 34. MAINTENANCE OF STANDARDS

Section 1. The Employer agrees that all conditions of employment in his individual operation relating to wages, hours of work, overtime differentials, and general working conditions shall be maintained at not less than the highest standards in effect at the time of the signing of this agreement.

...

EXHIBIT "A"

Drivers, driver operators, and mechanics engaged in doing excavating, grading, paving and batch work, water, gas pipe, sewer and tunnel work, asphalt and all black top, snow removal, ashes, cinders, sand, gravel, stone, gravel pit stripping and utility men covering:

	6-1-99	6-1-00	6-1-01	6-1-02
A. New employees who have never driven trucks for this Employer before, first 90 days of employment	\$10.18	\$10.63	\$11.08	\$11.53
B. Truck drivers after 90 calendar days of employment	\$12.33	\$12.78	\$13.23	\$13.68
C. Combination truck driver & machine operator & mechanics	\$13.98	\$14.58	\$15.18	\$15.78

POSITIONS OF THE PARTIES

The Union

The Union asserts that the Company violated Article 4, Section 1 and Article 34, Section 1 when the Company denied the grievant the cold roller job in May, 2000.

As to Article 4, Section 1, the Union contends that the cold roller job is a "higher rated" job than operating the crusher because of the potential to earn "white sheet" wages. Because the grievant had the "ability and qualifications" to operate the cold roller and had more seniority than the employee given the job by the Company, the Union argues that the grievant was entitled to the job under Article 4, Section 1. The Union disputes the Company contention that the grievant's attitude or temper disqualified him from the job. The Union assert that such factors are not "qualifications", that the grievant has never been disciplined for his attitude or temper, that there is no significant evidence that the grievant's attitude or temper is any worse than other employees, and that there is no documented evidence that the grievant's attitude or temper have affected job performance.

As to Article 34, Section 1, the Union argues that when jobs have been posted, lateral transfers such as the one sought by the grievant have always been awarded based on seniority. Under such circumstances, the Union asserts that the maintenance of standards language in Article 34, Section 1 was violated when the grievant was denied the cold roller position.

The Union asks that the Company be ordered to cease and desist from violating the contract, place the grievant in the cold roller position, and make him whole for any losses.

The Company

The Company initially argues that issue to be resolved in arbitration should be limited to the violation of Article 4, Section 1 alleged in the grievance. The Company asserts that where, as here, the grievance makes no mention of a past practice or a maintenance of standards clause argument and there is no evidence that such issues were discussed during the processing of the grievance, it is inappropriate to consider them now.

As to the alleged violation of Article 4, Section 1, the Company contends that because the request transfer was not to a “higher rated job,” Article 4, Section 1 does not apply and that the Company was free to assign the roller job as it saw fit. The Company argues that the only contractually recognized basis for “rating” jobs is by pay classification and points out that the roller job is in the same pay classification as the crusher work the grievant was performing at the time of the transfer request. Arguments that the roller job is “higher rated” because of the potential for earning “white sheet” wages or because the roller job is “easier” should be rejected as being speculative, subjective, unworkable and without contractual support.

If the Article 34 maintenance of standards issue is entertained, the Company argues that it did not violate this contractual provision because the clause does not apply to the exercise of management rights such as job assignments and because there is no binding past practice to be maintained. The Company contends that job assignments are not “general working conditions” within the meaning of Article 34, Section 1. As to the alleged existence of a past practice, the Company alleges that there is no consistent, mutually accepted practice of awarding a lateral transfer to the most senior bidder.

Lastly, the Company argues that even if it is concluded that Article 4 or 34 generally require that lateral transfers be awarded based on seniority, the grievant was not entitled to this transfer because he did not have the ability to perform the work to the Company's satisfaction. The Company asserts that its judgement that the grievant's temperament would prevent the efficient functioning of the paving crew is not arbitrary and capricious and thus should not be second guessed.

Given all of the foregoing, the Company asks that the grievance be denied.

DISCUSSION

I begin with the issue of whether the dispute before me is limited to the Article 4, Section 1 violation alleged in the grievance or also includes consideration of whether Article 34, Section 1 was honored by the Company.

The Company correctly notes that arbitrators generally will not decide claims that are raised at the first time at the arbitration hearing. However, absent specific contrary language in the grievance procedure, where the claim remains the same but additional arguments or contractual provisions are cited in support thereof, arbitrators generally conclude that they have jurisdiction to consider the additional arguments/contractual provisions. Here, I conclude that the claim has remained unchanged (i.e. did the grievant have a contractual right to the roller job?) and the Union at hearing advanced an additional contractual argument in support of that claim. Under these circumstances, I am persuaded that both Article 4 and Article 34 are before me for consideration.

As to the alleged violation of Article 4, Section 1, the Company persuasively argues that because the two jobs in question are both Class C jobs for the purposes of wage rates, the grievant was not seeking a transfer to a “higher rated job” within the meaning of Article 4, Section 1. The only way the contract explicitly “rates” jobs is by hourly wage rate and use of phrase “higher rated” as opposed to “better” conveys an intent to exclude factors such as whether a job might be “easier.” For the same reasons, I reject the argument that the potential for “white sheet” earnings is a factor in how a job is “rated” under Article 4. Hourly wage rate is the only explicit contractual rating of jobs and the formality of the phrase “higher rated” conveys an intent to exclude other considerations which might make a job “better”- including the potential of “white sheet” earnings. While such additional factors clearly will play a role when an employee decides whether to bid on a different job, these factors do not play a role when determining how a job is “rated.”

Because the consideration of seniority under Article 4 is limited to “advancement to higher rated jobs,” and because I conclude that moving from the crusher to the roller is not “advancement to a higher rated job,” I find that the Company’s action did not violate Article 4. While the Company is free to consider seniority in such circumstances, it is not contractually obligated to do so by Article 4.

Turning to Article 34, the contract requires that the Company maintain

. . . all conditions of employment in his individual operation relating to **wages, hours of work, overtime differentials and general working conditions . . .** (emphasis added).

Because the transfer right asserted by the grievant is not a “wage,” “hour of work” or “overtime differential”, the question becomes whether it is a “general working condition” within the meaning of Article 34. I conclude it is not. While it can well be argued that a practice as to transfers is a “condition of employment,” Article 34 only protects those “conditions of employment” that are “general working conditions.” I am persuaded that the contractual phrase “general working conditions” does not include transfer practices but rather

are generally limited to matters such as the physical conditions under which work is performed. Thus, I concluded that the Company's conduct did not violate Article 34.

Given all of the foregoing, I deny the grievance.

Dated at Madison, Wisconsin this 31st day of July, 2001.

Peter G. Davis, Arbitrator

UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF ALASKA

Monday
April 18, 2016
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Historic Courtroom
605 West Fourth Avenue
Anchorage, Alaska

CALENDAR OF BANKRUPTCY JUDGE GARY SPRAKER

TIME	CASE/ADVERSARY NUMBER, NAME, and CHAPTER TYPE OF PROCEEDING and COUNSEL
1:45 p.m.	Case No. A14-00065-GS, In re DAVID M. DECKER and MARILYN L. DECKER, Debtors. Ch 11. TELEPHONIC Scheduling Hearing on Disclosure Statement (DE# 93) and Chapter 11 Plan (DE# 92). Robert Crowther for the Debtors; Thomas Buford at (206)553-2000 ext. 229 for the U.S. Trustee.
2:00 p.m.	Case No. A15-00279-GS, In re SEWARD SHIP'S DRYDOCK, INC., Debtor. Ch 11. Hearing on Debtor's Motion to Dismiss (DE# 43). David Bundy for the Debtor; Gary Sleeper for Alaska Marine Highway System; Thomas Buford for the U.S. Trustee.



**Special Education
School District Data Profile for
Johnson City Central School District for 2007-08**



Vocational and Educational Services for Individuals with Disabilities

Special Education School District Data Profile for 2007-08

The Special Education School District Data Profile is prepared in accordance with the requirement of the Individuals with Disabilities Education Act (IDEA). Each State must have a State Performance Plan (SPP) to evaluate the State's efforts to meet the requirements and purposes of the implementation of IDEA. The SPP is a six-year plan which describes New York State's performance on 20 indicators. States must report annually to the public on the performance of the State in an Annual Performance Report (APR) and each school district against the State's targets. New York State's SPP and the APR that describe these indicators in detail are available at

<http://www.vesid.nysed.gov/specialed/spp/home.html>.

The following report reflects only quantifiable data collected by the State. Since performance of a school district in any indicator may be the result of unique circumstances within a district, readers are encouraged to consider information provided by the district's administration in interpreting these data.

Enrollment and Classification Rate

	2007-08
• Enrollment of school-age students with disabilities on December 3	429
• District enrollment (public and nonpublic school-age students - with and without disabilities) on the first Wednesday in October	2,899
• Special education classification rate	14.8%
• Enrollment of preschool students with disabilities on December 1	44

Indicator 1: Graduation Rate of Students with Disabilities

	2007-08 (2004 Total Cohort four years later as of June 30, 2008)	2007-08 (2003 Total Cohort five years later as of June 30, 2008)
• Number of students with disabilities who first entered 9th grade anywhere (or if ungraded, became 17 years old) in 2004-05	55	
• Number of students with disabilities who first entered 9th grade anywhere (or if ungraded, became 17 years old) in 2003-04		36
• Graduation rate	58.2%	52.8%
• State target for 2007-08	38% or higher	No State Target
• Meets State target?	Yes	Not Applicable



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Indicator 2: Drop-Out Rate of Students with Disabilities

	2007-08 (2004 Total Cohort as of June 30, 2008)
• Number of students with disabilities who first entered 9th grade anywhere (or if ungraded, became 17 years old) in 2004-05 school year	55
• Drop-out rate after four years	14.5%
• State target for 2007-08	19% or lower
• Meets State target?	Yes

Indicator 3: State Assessments

Participation in State Assessments	2007-08			
	Grades 3-8 English Language Arts (ELA)	Grades 3-8 Math	High School English Language Arts (ELA)	High School Math
• Enrollment of students with disabilities for participation rate	189	192	Less Than 40*	Less Than 40*
• Participation rate	99%	99%	*	*
• State target for 2007-08	95%	95%	95%	95%
• Meets State target?	Yes	Yes	*	*

* Participation rate is provided only if at least 40 students with disabilities are reported in the first row.

Performance on State Assessments and Adequate Yearly Progress (AYP)	2007-08			
	Grades 3-8 English Language Arts (ELA)	Grades 3-8 Math	High School English Language Arts (ELA)	High School Math
• Enrollment of students with disabilities for performance accountability	171	169	41	41
• Score on performance index	119	144	151	161
• State target for 2007-08	101	110	124	134
• Meets State target?	Yes	Yes	Yes	Yes
• Made AYP?	Yes	Yes	Yes	Yes



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Vocational and Educational Services for Individuals with Disabilities

Indicator 4: Suspensions/Expulsions

Long-term Suspension Rate	2007-08
• Number of students with disabilities suspended out-of-school for more than 10 days	12
• Number of students with disabilities enrolled on December 3	429
• Percent of students with disabilities suspended out-of-school for more than 10 days	2.8%
• State target for 2007-08	2.7% or lower
• Meets State target?	No

Indicator 5: School-age Least Restrictive Environment (LRE)

	2007-2008				
• Number of students with disabilities ages 6-21 on December 3	417				
	Percent of students with disabilities in general education program for:			In separate schools / facilities	In Other Settings
	80% or more of the day	40 to 79% of the day	Less than 40% of the day		
• Percent of students ages 6-21 in each setting	58%	13.7%	21.1%	7.2%	0%
• State target for 2007-08	More than 53.1%	No State Target	Less than 24.6%	Less than 6.8%	No State Target
• Meets State target?	Yes	Not Applicable	Yes	No	Not Applicable

Indicator 6: Preschool Least Restrictive Environment (LRE)

The data for this indicator are not presented because the LRE reporting categories for preschool children with disabilities are under review by the United States Department of Education.

**Indicator 7: Preschool Outcomes**

If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html> for the school year in which this school district will report data for this indicator.

	2007-08		
	Positive Social - Emotional Skills	Acquisition and Use of Knowledge & Skills	Use of Appropriate Behaviors to Meet their Needs
• Number of preschool students with disabilities evaluated for progress between entry into preschool special education and exit from preschool special education			
• Percent of preschool students with disabilities who demonstrate improvement			
• State target for 2007-08	To Be Established	To Be Established	To Be Established
• Meets State target?			

Indicator 8: Parental Involvement

If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html> for the school year in which this school district will report data for this indicator.

	2007-08
• Number of completed parent surveys returned	
• Percent of parents who reported that schools facilitated parent involvement to improve services and results for students with disabilities	
• State target for 2007-08	87.5% or higher
• Meets State target?	

Indicator 9: Disproportionality - Identification for Special Education

	2007-08
• Did the school district have disproportionate representation of racial and ethnic groups in special education and related services that was the result of inappropriate policies, practices and procedures?	No
• State target for 2007-08	No school districts will have disproportionality that is the result of inappropriate policies, practices and procedures.
• Meets State target?	Yes
• Date the district reported correction of noncompliance for this indicator if it did not meet the State target	Not Applicable



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Indicator 10A: Disproportionality in Specific Disability Categories

	2007-08
Did the school district have disproportionate representation of racial and ethnic groups in specific disability categories that was the result of inappropriate policies, practices and procedures?	No
State target for 2007-08	No school districts will have disproportionality that is the result of inappropriate policies, practices and procedures.
Meets State target?	Yes
Date the district reported correction of noncompliance for this indicator if it did not meet the State target	Not Applicable

Indicator 10B: Disproportionality in Special Education Placements

	2007-08
Did the school district have disproportionate representation of racial and ethnic groups in particular settings that was the result of inappropriate policies, practices and procedures?	No
State target for 2007-08	No school districts will have disproportionality that is the result of inappropriate policies, practices and procedures.
Meets State target?	Yes
Date the district reported correction of noncompliance for this indicator if it did not meet the State target	Not Applicable

Indicator 11: Timely Evaluations (Child Find)

If data are not provided for this indicator, see the schedule posted at http://www.vesid.nysed.gov/sedcar/sppschedule.html for the school year in which this school district will report data for this indicator.		
	2007-08	
	Preschool	School-age
Number of students for whom parental consent to evaluate was received (July 1, 2007 to June 30, 2008)		
Number of students whose evaluations were completed within the State established timeline		
Number of children whose evaluations were not completed within State established time lines, but for reasons that are considered to be in compliance with State requirements		
Compliance Rate [Line 2 divided by (Line 1 minus Line 3)*100]		
State target for 2007-08	100%	100%
Meets State target?		



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Indicator 12: Early Childhood Transition

If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html> for the school year in which this school district will report data for this indicator.

	2007-08
• Number of children who were served in Part C and referred to Part B for eligibility determination	
• Number of those referred determined to be NOT eligible and whose eligibilities were determined prior to their third birthday	
• Number of those found eligible who had an IEP developed and implemented by their third birthday	
• Number of children for whom delays in determination of eligibility or delays in implementing the IEP were caused by reasons that are in "in compliance" with State requirements	
• Compliance Rate [Line 3 divided by (Line 1 minus Line 2 minus Line 4) *100]	
• State target for 2007-08	100%
• Meets State target?	

Indicator 13: Secondary Transition

If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html> for the school year in which this school district will report data for this indicator.

	2007-08
• Number of IEPs reviewed for students ages 15 and above	
• Percent of IEPs of students ages 15 and above that include coordinated, measurable, annual IEP goals and transition services that will reasonably enable the student to meet the post-secondary goals	
• State target for 2007-08	100%
• Meets State target?	
• Date the district reported correction of noncompliance for this indicator	

**Special Education
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Data for this indicator will be posted beginning June 2008, in accordance with the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html>.

2007-08

- Number of students interviewed to assess post-school outcomes one year after leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and who have been enrolled in some type of post-secondary school AND have been competitively employed within one year of leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and who have been enrolled in some type of post-secondary school within one year of leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and have been competitively employed within one year of leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and who have been enrolled in some type of post-secondary school, have been competitively employed, or both, within one year of leaving high school (sum of the three percentages above)
- State target for 2007-08
- Meets State target?

92%

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